

25STCV23624 25STCV23624

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Case Number: 25STCV23624 Hearing Date: July 2, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

2, 2026 TRIAL DATE: January 10, 2018

CASE: Luis Gudiel, on

behalf of himself and current and former aggrieved employees v. Landscape

Development LLC, et al.

ASE NO.: 25STCV23624

DEFENDANTS'

MOTION TO COMPEL

PLAINTIFF

LUIS GUDIEL TO ARBITRATION

MOVING PARTY: Defendants

Landscape Development, Inc. and Landscape Development, LLC

RESPONDING PARTY: No opposition

I. BACKGROUND

On August 11, 2025, Plaintiff, Luis

Gudiel, commenced this PAGA action against Defendants, Landscape

Development, Inc. and Landscape Development, LLC, on behalf of himself and all current and former aggrieved employees.

On October 1, 2025, Defendants filed an Answer to the Complaint.

On April 15, 2026, Defendants filed this motion to compel arbitration.

The motion is unopposed.

II. LEGAL STANDARD

Under California law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 8-9; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339 (Concepcion).) Similarly, the Federal Arbitration Act (FAA) reflects a liberal federal policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (Concepcion, 563 U.S. at p. 339.) In line with these principles, courts must place arbitration agreements on an equal footing with other contracts and enforce them according to their terms. (Ibid.) “[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.’” (Higgins v. Sup. Ct. (2006) 140 Cal.App.4th 1238, 1247.) Accordingly, whether an agreement is governed by the California Arbitration Act (CAA) or the FAA, courts resolve doubts regarding the scope of arbitrable issues in favor of arbitration. (Moncharsh, 3 Cal.4th at p. 9; Comedy Club, Inc. v. Improv West Assocs. (9th Cir. 2009) 553 F.3d 1277, 1284.)

While the arbitration agreement may be governed by the FAA, the agreement may be enforced via the summary procedures provided by California arbitration law. (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 409-410.) It is a “general and unassailable proposition . . . that States may establish the rules of procedure governing litigation in their own courts,” even though the

controversy is governed by substantive federal law. (*Felder v. Casey*, (1988) 487 U.S. 131, 138.) By the same token, however, a state procedural rule must give way "if it impedes the uniform application of the federal statute essential to effectuate its purpose, even though the procedure would apply to similar actions arising under state law." (*McCarroll v. L.A. County etc. Carpenters*, (1957) 49 Cal.2d 45, 61, 62.)

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by their agreement. (Code Civ. Proc., § 1281.2.) California statutes create a "summary proceeding" for resolving petitions or motions to compel arbitration. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

When a party has filed a petition to compel arbitration, the trial court must determine in a summary proceeding whether an "agreement to arbitrate the controversy exists." (Code Civ. Proc., §§ 1281.2, 1290.2; *Rosenthal*, 14 Cal.4th at pp. 412–413.) In that proceeding, because the existence of the agreement is a statutory prerequisite to granting the petition, "[t]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla*, 15 Cal.4th at p. 972; *Rosenthal*, 14 Cal.4th at p. 413.)

The court should grant the motion unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for rescission of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

The trial court typically decides the threshold issues of enforceability of the arbitration agreement and the scope of issues to be arbitrated. (*Aanderud v. Sup.Ct. (Vivint Solar Developer*,

LLC) (2017) 13 Cal.App.5th 880, 891.)

III. DISCUSSION

The court must decide two issues: (1) Is there an arbitration agreement? (2) Does the agreement cover Plaintiff's claims? For the reasons stated herein, the court denies the motion.

A. Existence of an Arbitration Agreement

Code of Civil Procedure section

1281.2 requires the trial court to order arbitration of a controversy "[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy ... if it determines that an agreement to arbitrate the controversy exists." On a motion to compel arbitration, the threshold question is whether there is an agreement to arbitrate the dispute. (Trinity v. Life Ins. Co. of North America (2022) 78 Cal.App.5th 1111, 1120.) The party seeking to compel arbitration bears the burden of proving by a preponderance of the evidence an agreement to arbitrate a dispute exists. (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 (Pinnacle Museum); Rosenthal, supra, 14 Cal.4th at p. 413.) To meet this burden, the moving party must first produce "prima facie evidence of a written agreement to arbitrate the controversy." (Rosenthal, supra, 14 Cal.App.4th at p. 413; accord, Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) "If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then ... the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Gamboa, 72 Cal.App.5th at p. 165.) "If the opposing party produces such evidence, then 'the moving party must establish with admissible evidence a valid arbitration agreement between the parties.' " (Trinity, supra, 78 Cal.App.5th at p. 1120.) "Despite the shifting burden of production, '[t]he burden of proving the agreement by a preponderance of the evidence remains with the moving party.' " (Ibid.)

Here, Defendants makes a prima facie case for the existence of a valid arbitration agreement. Defendants submit a document titled "Mutual Agreement to Arbitrate All Claims" (hereafter, the "MAA").

The MAA states in pertinent part:

“The Company and I agree and acknowledge that we will utilize binding arbitration as the sole and exclusive means to resolve all disputes that may arise out of or be related in any way to my application for employment and/or my employment, including but not limited to the termination of my employment and my compensation...

(Ochoa Decl., Ex. A (“MAA”).) The copy of the MAA indicates that, on April 26, 2024, Plaintiff signed the MAA by wet signature. The MAA provides that it is governed by the FAA. Defendants meet their initial burden. ζ Plaintiff, having not filed an opposition, does not meet his burden to show otherwise. Accordingly, the court finds there is a valid arbitration agreement. ζ The court proceeds to consider whether the arbitration agreement covers Plaintiff’s claims.

B. Scope of the MAA

After reviewing the MAA, the court finds this action cannot be compelled to arbitration for two reasons. First, the MAA includes an impermissible waiver of PAGA class actions. It is well-settled that employment agreements compelling the waiver of representative claims under PAGA is contrary to public policy and unenforceable. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 384, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639.) Accordingly, Plaintiff’s representative PAGA claims cannot be compelled to arbitration.

Second, the MAA contains a severability clause which reveals the agreement does not cover any individual or representative PAGA claims. Specifically, the MAA states,

If my agreement to waive my right to bring an action under the California Private Attorneys General Act of 2004 is declared void or unenforceable and I bring an action that includes claims subject to this agreement and claims under the California Private Attorneys General Act of 2004, both the Company and I agree to stay any claims under the California Private Attorneys General Act of 2004 until the claims subject to this agreement are fully arbitrated.

(MAA, ¶ 13, emphasis added.) The highlighted language makes clear that the parties did not agree to arbitrate any PAGA claim. Because Plaintiff brings only PAGA claims, the court finds the MAA does not direct arbitration of Plaintiff's claims.

IV.

CONCLUSION

The motion to compel arbitration is DENIED.

Plaintiff is ordered to give notice,
unless waived.

Dated: July 2, 2026

Brock T. Hammond

Judge of the Superior Court